

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No.: 06-cv-01142-WDM-MJW

KARYN S. PALGUT,

Plaintiff,

vs.

CITY OF COLORADO SPRINGS,

Defendant.

JUDGMENT

This matter was tried as to plaintiff's claims from April 12-15, 2010, and April 19-21, 2010, before a duly sworn jury of six, the Honorable Walker D. Miller, Senior United States District Judge presiding.

Prior to trial, Defendant's Partial Motion to Dismiss (Filed 3/8/10; Doc. No. 434) was granted in part on April 5, 2010 to dismiss Plaintiff's disparate impact claim. Defendant's oral Rule 50 motion was granted on April 21, 2010 to dismiss Plaintiff's Consumer Credit Reporting Act claim as a matter of law.

The trial proceeded to conclusion and the jury rendered its verdict as follows:
We, the jury, present our Answers to Questions submitted by the Court, to which we have all agreed:

Question 1: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs discriminated against Plaintiff Karyn Palgut on the basis of her sex in violation of Title VII of the Civil Rights Act of 1964? (Instr. No. 2)

Answer: No.

Question 2: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs retaliated against Plaintiff Karyn Palgut for making a complaint of sex discrimination in violation of Title VII of the Civil Rights Act of 1964? (Instr. No. 3)

Answer: No.

Question 3: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs discriminated against Plaintiff Karyn Palgut on the basis of her age in violation of the Age Discrimination in Employment Act? (Instr. No. 4)

Answer: No.

If your answer to Question 3 is "yes," then proceed to Question 4. If your answer to Question 3 is "no," then proceed directly to Question 5.

Question 4: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs' violation of the Age Discrimination in Employment Act with regard to Plaintiff Karyn Palgut was willful?

Question 5: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs discriminated against Plaintiff Karyn Palgut in violation of her civil rights? (Instr. No. 5)

Answer: No.

Question 6: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs deprived Plaintiff Karyn Palgut of her right to Due Process in violation of her civil rights? (Instr. No. 6)

Answer: No.

ONLY ANSWER QUESTION 7 IF YOU ANSWERED "YES" TO QUESTION 3, 5 or 6.

Question 7: What amount of back pay damages do you find that Plaintiff Karyn Palgut has proven by a preponderance of the evidence that she is entitled to arising out of Defendant City of Colorado Springs' discrimination against her on the basis of age and/or violation of her civil rights?

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ONLY ANSWER QUESTION 8 IF YOU ANSWERED "YES" TO QUESTION 1, 2, 3, 5 and/or 6.

Question 8: What amount of compensatory damages do you find that Plaintiff Karyn Palgut has proven by a preponderance of the evidence that she is entitled to arising out of Defendant City of Colorado Springs' discrimination against her on the basis of sex in violation of Title VII, retaliation against her in violation of Title VII, violation of the Equal Protection Clause, and/or deprivation of her Due Process rights?

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It is ORDERED as follows:

- a. That judgment shall enter for the Defendant, City of Colorado Springs and against the Plaintiff, Ms. Karyn S. Palgut.
- b. That the Defendant, is awarded its allowable costs from the plaintiff, on the filing of a Bill of Costs within ten days of the entry of this judgment.

DATED at Denver, Colorado this 4th day of May, 2010.

FOR THE COURT:

GREGORY C. LANGHAM, CLERK

s/ Edward P. Butler
Edward P. Butler,
Deputy Clerk

APPROVED AS TO FORM:



Walker D. Miller
Senior United States Judge